

Record No. 108/2004

THE CIRCUIT COURT
(AN CHUIRT CHUARDA)

SOUTH EASTERN CIRCUIT

COUNTY OF WEXFORD

Between:

MICHAEL JAMES

Plaintiff

- and -

DAVID PIPER

Defendant

NOTICE FOR PARTICULARS

TAKE NOTICE that as Solicitors for the Defendant we hereby require further and better particulars in the following matters arising out of the Circuit Court Civil Bill herein dated the 13th March, 2004.

1. Please state the date of birth, occupation and marital status of the Plaintiff.
2. Was the Plaintiff wearing his seatbelt? If not, why not?
3. Please furnish us with full and detailed particulars of the alleged personal injuries sustained by the Plaintiff.
4. Is the Plaintiff now fully recovered from the effects of his alleged injuries and if not please advise us of the up to date position with regard to same.
5. Is the Plaintiff still undergoing active medical care? If so please furnish us with full and detailed particulars of same.
6. Please furnish us with the date upon which the Plaintiff first received medical treatment for his alleged injuries and from whom.
7. Please furnish us with the date upon which the Plaintiff last received medical treatment for his alleged injuries and from whom.
8. Please furnish us with the names and addresses of the Plaintiff's medical attendants.
9. Was the Plaintiff detained in hospital as a result of the alleged accident and if so please furnish us with full and detailed particulars of same.

10. Did the Plaintiff attend hospital as an out-patient and if so please furnish us with full and detailed particulars of same.
11. Did the Plaintiff miss any time off work as a result of the alleged accident and if so please furnish us with full and detailed particulars of same.
12. Did the Plaintiff ever have an accident or injury either prior to or subsequent to the alleged accident date which might have any bearing whatsoever on the injuries now complained of? If so please furnish us with detailed particulars.
13. Did the Plaintiff ever make a claim for compensation for personal injuries before? If so please furnish a copy of the Booklet of Pleadings and a copy of the Booklet of Medical Reports secured in relation to the said claim. Please advise of the outcome of same.
14. Was the Plaintiff at the date of the alleged accident suffering from any medical condition whatsoever or had he previously suffered from any medical condition whatsoever which might have a bearing on the injury complained of? If so please furnish us with detailed particulars.
15. Please furnish us with detailed particulars of the amount being claimed in respect of motor vehicle damage together with appropriate invoice/vouchers.
16. Please furnish us with full and detailed particulars of the amount being claimed in respect of medical expenses together with appropriate invoice/vouchers.
17. Please furnish us with full and detailed particulars of the amount being claimed in respect of loss of earnings together with appropriate invoice/vouchers.
18. Please furnish us with full and detailed particulars of the amount being claimed in respect of medication together with appropriate invoice/vouchers.
19. Please furnish us with full and detailed particulars of the amount being claimed in respect of any and all other items of special damage together with appropriate invoice/vouchers.
20. Please advise as to whether or not the Plaintiff has the benefit of legal costs insurance.
21. Please advise as to whether or not the Plaintiff has the benefit of a medical card.

Dated this 6th day of February, 2004.

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S i g n e d : _ _ _ _ _

Solicitors for the Defendant,
The Dowry,
Shergar Street,
Wexford.

To: Moriarty & Partners,
Solicitors for the Plaintiff
Shergar Street,
Wexford.